

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 2588

By: Staires of the House

and

Rader of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to owners associations; amending 60
12 O.S. 2021, Section 854, which relates to owners
13 associations membership; requiring owners association
14 board members to be record owners of property in the
15 real estate development that the owners association
16 governs; requiring owners association board members
17 to physically reside in the real estate development
18 that the owners association governs; and providing an
19 effective date.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 60 O.S. 2021, Section 854, is
amended to read as follows:

Section 854. A. Membership of said owners association shall
consist of recorded owners of separately owned lots in the real
estate development. Membership is transferred upon legal transfer
of title to the separately owned lots. The owners association may

1 also enforce the covenant and restrictions of the real estate
2 development when specified by the covenants and restrictions.

3 B. Board members of an owners association, after the real
4 estate developer relinquishes control of the owners association,
5 shall consist of members of said owners association that are current
6 recorded owners of lots in the real estate development.

7 Furthermore, owners association board members shall physically
8 reside in the real estate development that is governed by the said
9 owners association.

10 SECTION 2. This act shall become effective November 1, 2026.

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12 COMMITTEE REPORT BY: COMMITTEE ON GOVERNMENT OVERSIGHT, dated
13 03/03/2026 - DO PASS, As Amended.
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